



File No.: EXP202311688 (AI/00339/2023)

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On July 9, 2023, a complaint was filed with entry registration number REGAGE(...) with the Spanish Agency for Data Protection against CTT EXPRESSO-SERVIÇOS POSTAIS E LOGISTICA SA BRANCH IN SPAIN with NIF W1000101D (hereinafter, CTT EXPRESSO). The reasons for the complaint are as follows:

The complainant states that the entity being complained about was responsible for the delivery management of a package for which the complainant was the recipient and indicates that on May 24, 2023, they were notified of the delivery of the package, although it was not delivered to their home, nor did they have any record of it being delivered to neighbors. The delivery note for said package references an ID number of the person who supposedly collected the package, which is different from that of the complainant, as well as a signature that is not that of the complainant. Therefore, the complainant understands that it was delivered to a third party, unknown to them, implying an ineffective adoption of security measures in the processing of their data included on the package label. Along with the notification, an image of the delivery note for the package addressed to the complainant is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on September 5, 2023, the complaint was forwarded to CTT EXPRESSO for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on September 11, 2023, as recorded in the acknowledgment of receipt in the file. On October 4, 2023, a response was received by this Agency indicating that the Data Protection Officer of CTT, after analyzing the sanctioning resolution of the AEPD directed against a logistics sector company (File No.: PS/00280/2022), proceeded in November 2022 to prepare a Technical Report. As a result of this, a working group was created with the different managers involved in the daily operations of delivering goods to customers, with the aim of adapting work processes to the recommendations of the report. Essentially, instructions were given so that, in the delivery operations to customers, they would be informed of the possibility of not authorizing the delivery of their package to a third party in case of absence at their home and, consequently, not making the delivery if the customer had expressed their refusal in this regard.

Regarding this complaint, CTT has reviewed the case of the complainant and has verified that the delivery was made to the person who was at the indicated address, who was only identified by their ID. On the other hand, the signature that appears on the delivery receipt is not a signature; it is merely a line. It does not have any handwriting resembling a signature.

According to CTT, the complainant was informed at all times about the delivery process, and the delivery person who made the delivery confirms that they delivered to the address indicated by the complainant. In any case, our Customer Service department has attempted to contact the complainant by phone on numerous occasions, without receiving a response.

THIRD: On October 9, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

RESULT OF THE INVESTIGATION ACTIONS

- The complainant provides, along with the complaint document, an image of the delivery receipt for the goods, which states that it has been provided by the seller, in which it is verified that the recipient's data of the shipment includes the complainant's data, and in the space designated for the signature, the field "Fdo:" contains the name and first surname of the complainant, while the field "DNI" contains an ID number that does not correspond to the complainant's ID number, and the signature appears as a drawn line.

- On October 4, 2023, a response document from CTT EXPRESSO - SERVIÇOS POSTAIS E LOGISTICA SA BRANCH IN SPAIN (hereinafter CTTE) was received in the AEPD in response to the forwarding, and on March 3, 2024, a response document to the request for information from the Data Inspection was received, in which the following is stated:

o They provide a report from the company's Data Protection Officer (DPD) that was prepared with the aim of giving instructions and proposing changes in the operation to be able to deliver shipments to another person.

3/9

distinct from the recipient, in case they are not locatable at their address.

Instructions were given that, in the process of delivering goods to customers, they should be informed about the possibility of not authorizing the delivery of their package to a third party in case of absence at their domicile and, consequently, not making the delivery if the customer has expressed their refusal in this regard, which came into effect in December 2022.

They state that the recipient has been given the option to withdraw the delivery of the package through two notifications sent to their email, in which the option to withdraw is indicated by clicking on a link that directs to the withdrawal form on the CTTE website. This form, duly completed and sent by the recipient, informs the driver that they may only deliver to the destination address, thereby guaranteeing the recipient's right to withdraw the delivery to a neighbor, mailbox, or concierge.

They provide a copy of the Shipping Management procedure established by CTT, which describes the operational procedure. The procedure does not include operational actions in the case that the delivery is picked up by a person other than the addressee when they are not at home. They understand that the person picking up the shipment has a relationship, kinship, friendship, marriage, etc., with the recipient. If the recipient does not want another person who is at their home to pick up the delivery, they always have the option to change the delivery address (e.g., to work) so that only the recipient has access. The delivery address is indicated by the customer with the information provided by the recipient themselves, who can modify it with the option "Manage your shipment."

o

Regarding the decision made concerning this claim, they state that CTTE has reviewed the case and has been able to verify that the delivery was made to the person who was at the indicated address, who was identified by their ID.

o

Regarding the causes that have led to the incident that originated the claim, they state that after analyzing the specific case of the claimant, it has been verified that the delivery of goods to the claimant corresponds with the contract signed with the company PAGONE TYCHE S.L. They provide a copy of the service provision contract dated May 12, 2023, between CTTE and PAGONE TYCHE S.L., confirming that it includes the following clause:

"THIRTEENTH Personal data protection. The Provider agrees to process the personal data to which they have access and which are provided by CTET solely for the provision of the contracted service, in the manner required for the performance of their obligations arising from this contract, not to dispose of it in any other way or for any other purpose, and always in accordance with the instructions that are transmitted to them at each moment. The Provider will not use it in any way."

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4/9

any other information that may have been obtained and that is not necessary for the performance of the services.

The Provider commits and obliges itself to comply with the existing regulations regarding the protection of personal data, making the respect for the aforementioned regulations compatible with the fulfillment of what is established in this contract. In particular, it commits to: Use the tools, supports, platforms, and documentation that CTTE provides to collect the referred consent from the end customers.

Comply with the security measures established by the General Data Protection Regulation (GDPR) as well as supervising the compliance of its workers and collaborators. Adopt the necessary technical and organizational measures that guarantee the security of personal data to prevent its alteration, loss, processing, or unauthorized access, in compliance with what is established by the GDPR. Comply with the obligations and clauses established in Annex V regarding the processing of personal data.

The Provider commits that all personnel accessing personal data will be obliged to know and observe the measures, norms, procedures, rules, and standards of security and protection of the data they handle based on the tasks assigned to them.

The Provider may exercise its rights of access, rectification, cancellation, opposition, portability, and limitation of processing by email, as well as file a complaint with the competent Control Authority."

or

They state that the claimant was informed of the upcoming delivery of the package and also on the same day without, at any time, making use of the justification for withdrawal of delivery in case of absence from the domicile. They provide a copy of the content of the notices that, according to the responding party, were sent to the claimant, in which the delivery date of the shipment is informed and the following: "To facilitate the delivery of your shipment, we inform you that, in the event that there is no response at the delivery address, our courier will attempt to contact you by phone to agree on a delivery at an alternative location or date. If, ultimately, we are unable to deliver to the domicile or alternative location, nor contact you, we will deposit the shipment at the nearest CTT Express delivery point for you to collect it later. In the event that you do not wish for the alternative delivery to the indicated domicile, before depositing it at the CTT Express Point, please click [HERE](#)."

It has been verified by the acting Subinspector that clicking on the link "HERE" redirects to a CTT page titled "Dismiss Delivery Policy," which requests the shipment details and has a button to request withdrawal of delivery at an alternative domicile.

They provide details of the notifications sent to the claimant that are recorded in their systems corresponding to the following sequence:

- On May 23 at 17:42:36, the delivery was sent to the letter to the email ***USER.1@gmail.com
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5/9

- On May 24 at 07:25:47, the delivery today (out for delivery) was sent to the email ***USER.1@gmail.com

- On May 24 at 09:22:54, the delivered notification was sent to the email ***USER.1@gmail.com We attach evidence of the emails sent available in our systems

or

They have no record of any complaint from the claimant regarding the delivery of this service.

or

Regarding the measures taken to prevent similar incidents from occurring, they state that they have proceeded to review the delivery operations to ensure that this type of situation does not repeat, emphasizing the importance of all drivers correctly marking the corresponding option regarding the shipments they have planned daily.

or

They provide a copy of the Data Protection Annex to the contract that CTT maintains with the entity where the claimant made their purchase, Infinity Styles Ecommerce, under the commercial brand

SHEIN, in English. It contains, among others, the following clauses, translated into Spanish by the signer of this report:

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2. Relationship between the Parties 2.1 SHEIN is the Data Controller and the Provider is the Data Processor, as defined in the Applicable Privacy Laws.

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The Provider guarantees and commits regarding all SHEIN Data and/or Customer Data that it Processes during the execution of Data Processing Activities for SHEIN (or its customers):

☐

(a) it will not process SHEIN Data and/or Customer Data for any purpose other than the execution of the Data Processing Activities, unless required otherwise by applicable law, in which case the Provider will inform SHEIN of such legal requirement(s), unless expressly prohibited by such legal requirement(s);

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(b) it will ensure that all Authorized Persons who access SHEIN Data and/or Customer Data have committed in writing to maintain confidentiality or are subject to an adequate legal obligation of confidentiality;

LEGAL GROUNDS

I

Jurisdiction

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6/9

In accordance with the functions conferred upon each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Article 4.2) of the GDPR defines "processing" as:

"any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction."

For its part, Article 4.7) of the GDPR defines the "data controller" or "controller" as:

"the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be established by the law of the Union or of the Member States."

In the present case, in accordance with the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data, given that CTT ESPRESSO carries out, among other processing activities, the storage and use of the following personal data of natural persons, such as: name, surname, identification number, and location data.

CTT ESPRESSO carries out this activity in its capacity as the data controller, as it is the entity that determines the purposes and means of such activity, by virtue of the aforementioned Article 4.7 of the GDPR.

Article 4, paragraph 12 of the GDPR broadly defines “personal data security breaches” (hereinafter security breach) as “all breaches of security that lead to the accidental or unlawful destruction, loss, alteration of, or unauthorized communication or access to personal data transmitted, stored, or otherwise processed.”

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7/9

III

Presumption of Innocence

In the present case, the claiming party states that they were notified of the delivery of a package, although this was not delivered to their home, nor did they have any knowledge that it had been delivered to a neighbor. The delivery receipt of said package shows an ID number of the person who supposedly collected the package, which is unknown to the claiming party, as well as a signature that is not that of the claiming party.

On the other hand, according to the response from CTT EXPRESO to the information request made by this Agency, their delivery operation to customers involves delivering to a third party in case of absence at the customer's home or not making the delivery if the customer has expressed their refusal in this regard. For this purpose, the customer is informed on two occasions about the shipment of the package and the option to withdraw from delivery in case of absence. Furthermore, CTT EXPRESO states that the claiming party was informed about the shipping process, and that the delivery person claimed to have delivered the goods to a person who was at the claiming party's home.

This Agency understands that the confidentiality of the sender's data of a shipment will only be affected when access by a third party to personal data that is not public or that was not previously known by that third party is made possible.

The examination of the documents in the file highlights the absence of evidence capable of justifying the initiation of a sanctioning procedure, as it has not been proven that personal data of the claiming party that is not public or that was not previously known by a third party has been exposed, since there is no record that the package was delivered to a location other than that of the claiming party, and the error in the ID number on the delivery receipt does not constitute sufficient evidence to substantiate such a circumstance.

In this regard, it should be emphasized that in the field of administrative sanctions, the principles inspiring criminal law apply, with some nuances but without exceptions, and the principle of presumption of innocence has full effect, which must govern without exceptions in the sanctioning framework and must be respected in the imposition of any sanctions.

The Constitutional Court in Judgment 76/1990 (STC) considers that the right to the presumption of innocence entails “that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely evaluated by the sanctioning body, must result in an acquittal.”

In accordance with this approach, Article 53.2 of the LPACAP establishes that, in the case of administrative procedures of a sanctioning nature, the alleged responsible parties shall have the following rights:

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8/9

“a) (...)”

b) To the presumption of non-existence of administrative responsibility until proven otherwise.

As the Supreme Court clarified in its Judgment of October 26, 1998, the validity of the principle of

presumption of innocence “does not oppose that judicial conviction in a process can be formed on the basis of circumstantial evidence, but for this evidence to be able to undermine said presumption, it must satisfy the following constitutional requirements: the indications must be fully proven – they cannot be mere suspicions – and the reasoning by which, based on the proven indications, it has been concluded that the accused committed the infringing conduct must be explicit, otherwise neither the subsumption would be legally founded nor would there be a way to determine if the deductive process is arbitrary, irrational, or absurd, that is, if the right to the presumption of innocence has been violated by considering that the evidentiary activity can be understood as incriminating.”

Thus, it is necessary to distinguish true circumstantial evidence from mere suspicions or conjectures. The Constitutional Court has stated in its Judgment 24/1997 that “the criteria for distinguishing between circumstantial evidence capable of undermining the presumption of innocence and mere suspicions are based on: a) The circumstantial evidence must stem from fully proven facts. b) The facts constituting the crime must be deduced from those indications (completely proven facts) through a reasoned mental process in accordance with the rules of human judgment, explicitly stated in the convicting judgment (SSTC 174/1985, 175/1985, 229/1988, 107/1989, 384/1993, and 206/1994, among others).”

In short, the principle of presumption of innocence prevents attributing an administrative infraction when no incriminating evidence has been obtained and verified that substantiates the facts motivating the accusation or the involvement of the alleged infringer in them.

In this case, as stated, there are no rational indications that would allow attributing to the claimed party the commission of the infractions of the personal data protection regulations reported, so it cannot be considered that the right to the presumption of innocence that protects them has been undermined.

IV

Conclusion

Therefore, based on the information indicated in the previous paragraphs, no evidence has been found that substantiates the existence of an infraction within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

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9/9

Thus, as it has not been possible to attribute any responsibility for the exposure of the personal data of the claimant, as indicated by the Director of the Spanish Agency for Data Protection, IT IS AGREED: FIRST: TO PROCEED TO THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to CTT EXPRESSO - SERVIÇOS POSTAIS E LOGISTICA SA BRANCH IN SPAIN and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may, optionally, file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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